

		179-80. It requires a person to have suffered injury in fact and have lost money or property as a result of unfair competition in order to have standing for a UCL cause of action. <i>Pfizer Inc. v. Superior Court</i> (2010) 182 Cal.App.4th 622, 630. In <i>Korea Supply Co. v. Lockheed Martin Corp.</i>, the California Supreme Court ruled that restitution is a remedy for violation of section 17200 but “nonrestitutionary disgorgement,” which is akin to damages, is not. <i>Id.</i>, 29 Cal. 4th at 1144-51. “In the context of the UCL, ‘restitution’ is limited to the return of property of funds in which plaintiff has an ownership interest (or is claiming through someone with an ownership interest).” <i>Madrid v. Perot Systems Corp.</i> (2005) 130 Cal.App.4th 440, 453. “Thus, the California Supreme Court has defined a UCL order for restitution as one ‘compelling a UCL defendant to return money obtained through an unfair business practice to those persons in interest from whom the property was taken, that is, to persons who had an ownership interest in the property or those claiming through that person.’” <i>Id.</i> “The California Supreme Court has held that, while <i>restitutionary</i> disgorgement [of profits] may be an available remedy under the UCL, <i>nonrestitutionary</i> disgorgement [of profits] is <i>not</i> available in a UCL individual action or in a UCL <i>representative</i> action....” <i>Id.</i> at 460. Here, Plaintiff has not alleged that Defendant holds property or funds that Plaintiff has an ownership interest in. Rather, he seeks his “economic loss.” [SAC, ¶ 125.] He calls this restitution, but it is not. [<i>Id.</i>] In his prayer, Plaintiff prays for injunctive relief but he does not allege ongoing conduct that would give rise to the need for or right to an injunction. For this reason, the demurrer to this cause of action is sustained. Case Management Conference Continued to August 10, 2026 at 9:00 a.m.
4	Kim vs. Kim 2024-01376224	1. Motion for Protective Order 2. Motion to Compel Deposition (Oral or Written) 3. Order to Show Cause re: Monetary Sanctions Off Calendar

5	Lopez vs. Trans Pak, Inc. 2024-01437506	1. Motion to Compel Further Responses to Form Interrogatories 2. Motion to Compel Further Responses to Form Interrogatories Continued to 09/14/2026
6	McPherson vs. Donald & Lynn Southard, LLC 2025-01494975	Demurrer to Complaint Continued to 08/24/2026
7	Menon vs. Memorial Care Saddleback Medical Center 2024-01379144	1. Motion for Summary Judgment and/or Adjudication Defendant Robert Day, M.D.'s ("Defendant") Motion for Summary Judgment is granted. Plaintiffs Parvathi Devi Geetha Devi and Shreejith Menon, individually, and as the guardian ad litem of Krishna Menon ("Minor," collectively, "Plaintiffs"), assert causes of action for medical negligence and negligent infliction of emotional distress against Defendant. With respect to the moving defendant, Plaintiffs allege Defendant was negligent in the "prenatal, labor and delivery and post-delivery care of" Minor and Devi; that Minor "suffered severe and irreversible brain damage and additional physical injuries that currently require daily dialysis treatments and a feeding tube on year post-birth"; and, Devi "suffered severe pain, suffering, and emotional distress." (Compl. at pp. 4-5, ¶ GN-1.) Under their fourth cause of action for negligent infliction of emotional distress, Devi and Menon allege they are "entitled to recover for this emotional distress" pursuant to Thing v. La Chusa (1989) 48 Cal. 3d 644." (Compl. at p. 7, ¶ GN-1.) Defendant moves for summary judgment as to every negligence claim against him on the grounds that: [1] he at all times complied with the applicable standard of care; [2] his conduct was not a substantial factor in causing any of the alleged damages; and, [3] a bystander theory of negligent infliction of emotional distress fails without the existence of any underlying, independently actionable tort. (ROA 83 [Not. of Mot. at p. 2].) Summary Judgment Standard "[F]rom commencement to conclusion, the party moving for summary judgment bears the burden of persuasion that there is no triable issue of material fact and that he is entitled to judgment as a matter of law." (Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 850.) A "party moving for summary judgment bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact. . . ." (Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 850.) "A prima facie